

Court No. - 39

Case :- WRIT - C No. - 2664 of 2019

Petitioner :- Shital Prasad Sahu

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Lavkush Kumar Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Dhanraj Singh, Advocate holding brief of Sri Lavkush Kumar Singh, learned counsel for the petitioner, learned Standing Counsel for the respondents no.1 & 4 and Sri Krishna Agrawal, learned counsel for the respondents no. 2& 3.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 21.12.2018 whereby a sum of Rs. 40,882/- is sought to be recovered from the petitioner towards arrears of electricity dues.

It is stated that a provisional assessment notice was issued to the petitioner on 25.08.2015 making a demand of Rs. 40,852/- on the ground that during spot inspection he was found using 1KW (L.M.V-2 i.e. Commercial) against the sanctioned load of 1KW (L.M.V-1 i.e. domestic). Petitioner is stated to have submitted his objections on 3.9.2015, copy of which has been filed as Annexure-3 to the writ petition but there is no receiving of any authority and, therefore, we disbelieve this document as well as the contention of the petitioner that he has filed any objection on 3.9.2015. Since, this is a case of unauthorised use of electricity, petitioner has a remedy of approaching the Executive Engineer as per the provisions of Para 6.8 of the Electricity Supply Code, 2005.

We, therefore, **dispose of** this writ petition with a direction that if the petitioner appears before the Respondent no. 3-Executive Engineer Dakshinanchal, Vidyut Vitaran Khand, District Banda on 31.1.2019 at 11.00 AM along with a certified copy of this order and fresh objections, the Respondent no.3 shall consider the same and after granting the petitioner an opportunity of hearing decide the said representation, in accordance with law, within a further period of 15 days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned citation dated 21.12.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

Order Date :- 24.1.2019/Kirti